Harris County District Court

Cause No. 2025-CV-0044

Luke Williams, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	June 20, 2025
Plaintiff's counsel:	Danielle Sawyer, Valentine & Joyce Injury Lawyers

PARTIES

Plaintiff Luke Williams is an individual residing in Texas who was the driver of a vehicle involved in the collision described below. Defendant is an automobile insurance company authorized to do business in the State of Texas, which issued the liability and uninsured/underinsured motorist coverage policy under which Plaintiff seeks benefits.

FACTS

On April 20, 2024, Plaintiff was lawfully operating his vehicle on a public roadway in Pearland, Texas, when another vehicle traveling in the opposite direction crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The impact, though low in speed, was forceful enough to jerk Plaintiff's head and neck violently forward and backward. Plaintiff promptly reported the collision to Defendant and submitted a claim under the applicable coverage. Defendant has not paid the claim in full and has failed to communicate a reasonable basis for its position.

NEGLIGENCE

Defendant owed Plaintiff a contractual duty under the policy and a statutory duty under Texas law to investigate and adjust the claim in good faith and to pay covered benefits within a reasonable time. Defendant breached these duties by delaying its investigation, undervaluing the claim, failing to explain the basis for its decisions, and refusing to pay amounts that were reasonably clearly due. Such conduct constitutes unfair claim settlement practices under Texas Insurance Code Chapter 541 and prompt-payment violations under Chapter 542.

DAMAGES

As a direct result of the collision, Plaintiff suffered a neck strain that caused pain, stiffness, headaches, and limited range of motion. Plaintiff incurred medical expenses for examination and treatment, lost time from work, and suffered physical pain and mental anguish. Plaintiff seeks actual damages, statutory interest, attorney's fees, and court costs. Plaintiff demands judgment against Defendant in the amount of $185,000.00, together with all other relief to which Plaintiff may be entitled.